

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
FRANCISCO CAMINERO,

Plaintiff

-against-

CITY OF NEW YORK,
POLICE OFFICER LAWRENCE THOMAS, SHIELD # 23859,
POLICE OFFICER JOHN DOE #1,
POLICE OFFICER JOHN DOE #2,

Defendants

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this section and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney (s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) ; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
June 3, 2015


LAW OFFICE OF ELLIOT S. KAY, ESQ.
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
212-939-7251

Defendants' Addresses:
**CORPORATION COUNSEL OF THE CITY OF
NEW YORK**
100 Church Street
New York, New York 10007

Index No.

PURCHASED 6-3-15

Plaintiff designates
New York County as the place
of trial

The basis of the venue is where
tort arose

SUMMONS

Plaintiff resides in
New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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FRANCISCO CAMINERO,

Plaintiff

-against-

CITY OF NEW YORK, POLICE OFFICER
LAWRENCE THOMAS, SHIELD # 23859
POLICE OFFICER JOHN DOE #1,
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Defendant
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VERIFIED COMPLAINT

FRANCISCO CAMINERO, by his attorney, ELLIOT S. KAY, respectfully alleges as follows:

PARTIES

1. At all times mentioned, Plaintiff FRANCISCO CAMINERO was a resident of New York County, City and State of New York.
2. At all times mentioned, Defendant CITY OF NEW YORK ("CITY"), was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. At all times mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times mentioned, Defendant POLICE OFFICER LAWRENCE THOMAS, SHIELD # 23859, hereinafter referred to as ("P.O. THOMAS") was and is a police officer employed by POLICE, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and POLICE.
5. At all times mentioned, Defendant POLICE OFFICER JOHN DOE #1, hereinafter referred to as ("P.O. DOE #1") was and is a police officer employed by defendant POLICE, and at

all times herein was acting in such capacity as the agent, servant and employee of the CITY and POLICE.

6. At all times mentioned, Defendant POLICE OFFICER JOHN DOE #2, hereinafter referred to as ("P.O. DOE #2") was and is a police officer employed by POLICE, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and POLICE.

BACKGROUND

7. On or about August 10, 2014, at approximately 5:45 p.m., in front of 148 Sherman Avenue in New York County, multiple police officers, including P.O. THOMAS, P.O. DOE #1 and P.O. DOE #2, acting as agents, servants and/or employees of the Defendants, approached Plaintiff and struck Plaintiff's face and body.
8. Immediately thereafter, P.O. THOMAS, P.O. DOE #1 and P.O. DOE #2, violently slammed Plaintiff to the ground.
9. Next, the Defendants, including but not limited to P.O. THOMAS, P.O. DOE #1 and P.O. DOE #2, punched Plaintiff and struck Plaintiff's body multiple times with a police baton.
10. After punching and violently striking Plaintiff with a police baton, the Defendants intentionally placed Plaintiff under arrest without just cause or provocation and with reckless and negligent disregard for the truth. Defendant's, including P.O. THOMAS, accused Plaintiff of committing the crime of Criminal Possession of a Controlled Substance in the Third Degree.
11. On or about August 11, 2014, a criminal complaint was issued at the directive of the Defendants and a criminal action against Plaintiff was commenced.
12. Plaintiff was released from custody on or about August 11, 2014.
13. All charges against Plaintiff were dismissed on February 20, 2015.

14. As a result of the treatment of Plaintiff by the Defendants, Plaintiff was denied liberty by being falsely arrested and imprisoned. Plaintiff also sustained injuries to his head, neck, back and legs.
15. Defendants caused Plaintiff to be humiliated, to fear for his safety, and to suffer from other emotional distress.
16. Plaintiff had to defend against false charges until all charges were dismissed on February 20, 2015.

PROCEDURAL POSTURE

17. On November 6, 2014, and within ninety (90) days after the claim of false imprisonment arose, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable. Subsequently, on February 27, 2015, Plaintiff served an Amended Notice Claim upon Defendant CITY.
18. At least thirty (30) days have elapsed since the service of the claim prior to commencement of this action and adjustment of payment thereof has been neglected or refused.
19. A 50-H hearing has been held.
20. This action has been commenced within one year and ninety days after the causes of action accrued.
21. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

22. Paragraphs 1-21 are incorporated by reference as fully set forth herein.
23. The Defendants, including P.O. THOMAS, P.O. DOE #1 and P.O. DOE #2, their agents, servants and employees, arrested and confined Plaintiff, as described in paragraphs 7-12, and intended to confine Plaintiff. Plaintiff was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.
24. As a result of being falsely arrested and imprisoned by the Defendants, Plaintiff sustained multiple injuries. Plaintiff was denied liberty and the ability to enjoy life while he was imprisoned. Plaintiff also suffered emotional distress, humiliation and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: ABUSE OF PROCESS

25. Paragraphs 1-24 are incorporated by reference as though fully set forth herein.
26. In arresting Plaintiff, P.O. THOMAS, acting in his capacity as an agent, servant and employee of the Defendants, was motivated by an ulterior purpose to do harm, without justification or economic or social excuse.
27. In arresting Plaintiff, P.O. THOMAS sought either a detriment to Plaintiff or a collateral advantage to the Defendants that is outside of the legitimate ends of making an arrest.
28. As a result of the abuse of process by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: MALICIOUS PROSECUTION

29. Paragraphs 1-28 are incorporated by reference as though fully set forth herein.
30. Upon information and belief, on or about August 11, 2014, and from that time until the dismissal of charges on February 20, 2015, by the Honorable Judge presiding at New York County Criminal Court, the Defendants deliberately and maliciously prosecuted Plaintiff, an innocent person without any probable cause whatsoever, by filing or causing a felony complaint to be filed in the Criminal Court of the City of New York, New York County, for the purpose of falsely accusing Plaintiff of violations of the criminal laws of the State of New York.
31. The Defendants, their agents, servants or employees, failed to take reasonable steps to stop the prosecution of Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of Plaintiff.
32. The commencement of these criminal proceedings was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
33. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

FOURTH CAUSE OF ACTION: NEGLIGENCE

34. Paragraphs 1-33 are incorporated by reference as though fully set forth herein.
35. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process and malicious prosecution were caused solely by the negligence of the Defendants, their agents, servants and/or employees.

36. As a result of the negligence of the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

37. Paragraphs 1-36 are incorporated by reference as though fully set forth herein.
38. Defendant CITY, through its agents, servants and employees, including POLICE, had the responsibility for supervising, disciplining, evaluating and training of the NYPD officers involved in this matter, including P.O. THOMAS, P.O. DOE #1 and P.O. DOE #2.
39. Defendant CITY and POLICE have grossly failed to train and properly supervise its police officers, particularly the police officers involved herein, regarding the law of arrest, search and seizure.
40. Defendants CITY and POLICE were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.
41. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to illegally search and seize, falsely arrest, and maliciously prosecute Plaintiff.
42. As a result of the negligence of the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SIXTH CAUSE OF ACTION: NEGLIGENT HIRING

43. Paragraphs 1-42 are incorporated by reference as though fully set forth herein.
44. The Defendants had the responsibility for hiring the police officers that arrested Plaintiff, including P.O. THOMAS.

45. The Defendants were negligent in hiring the police officers that arrested Plaintiff, including P.O. THOMAS.
46. As a result of the negligence of the Defendants, Plaintiff sustained multiple physical and emotional injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SEVENTH CAUSE OF ACTION: ASSAULT

47. Paragraphs 1-46 are incorporated by reference as though fully set forth herein.
48. P.O. THOMAS, P.O. DOE #1 and P.O. DOE #2, acting as the agents, servants and employees of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact. The Defendants punched Plaintiff's face, head, and back. The Defendants also struck Plaintiff's body with a police baton.
49. As a result of being assaulted by P.O. THOMAS, Plaintiff sustained multiple injuries, including injuries to Plaintiff's head, neck, legs and back. Plaintiff also sustained emotional distress, humiliation and fear and intimidation for his safety.

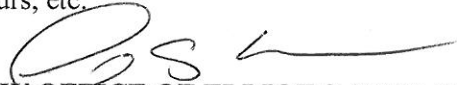
EIGHTH CAUSE OF ACTION: BATTERY

50. Paragraphs 1-49 are incorporated by reference as though fully set forth herein.
51. When the Defendants, including P.O. THOMAS, P.O. DOE #1 and P.O. DOE #2, grabbed Plaintiff, slammed Plaintiff to the ground and repeatedly struck Plaintiff, they subjected Plaintiff to a harmful or offensive bodily contact. The Defendants intended to make that contact without the consent of Plaintiff.
52. As a result of being battered by P.O. THOMAS, P.O. DOE #1 and P.O. DOE #2, Plaintiff sustained multiple injuries, including emotional distress, humiliation and fear and intimidation for his safety. Plaintiff also sustained injuries to his head, neck, legs and back.

WHEREFORE, Plaintiff **FRANCISCO CAMINERO** demands judgment against the
defendants on the First Cause of Action through the Eighth Cause of Action in a sum that exceeds
the jurisdictional limits of all lower trial courts

Dated: Bronx, New York
June 3, 2015

Yours, etc.



LAW OFFICE OF ELLIOT S. KAY, ESQ.

BY: ELLIOT S. KAY

Attorney for Plaintiff

888 Grand Concourse, Suite 1H

Bronx, New York 10451

(212) 939-7251

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Verification

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I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, New York
June 3, 2015



ELLIOT S. KAY